

**CITY OF BOULDER
CITY COUNCIL PROCEEDINGS**

December 5, 2000

1. CALL TO ORDER AND ROLL CALL

Mayor Toor called the regular December 5, 2000 meeting of the Boulder City Council to order at 6:00 p.m. in the Council Chambers.

Those present were: Mayor Toor and Councilmembers Corson, Eldridge, Lopez, Mock, Morzel, Poinsett and Riggle. Havlick was absent.

2. CITIZEN PARTICIPATION

1. Jane Bliss, 1004 Lincoln Pl. - re: University Hill resident voiced appreciation for University Hill Action Group. Indicated that the report is a call to action for Council- requested support.
2. Zheng Qu, Cires, 216 U.C.B. - re: requesting proclamation of a "Falun Dafa Week" in Boulder December 11-17, 2000.
3. Neil King, 415 College - re :University Hill Action Group Report - supports goals contained in the report. Requested stronger enforcement of City code.
4. Greg De Boever, 1064 10th St.- re: University Hill resident- Real Hill Issues: 1) Resources 2) Enforcement 3) Action 4) Livability. Asked for Council support for U.H.A.G. goals.
5. Rose Cronley, 1037 9th St. - re: University Hill - spoke about the intense over-occupancy and asked Council to support enforcement of City ordinances.
6. Patrick Murphy, 1554 North St.- re: Excessive amount of dog dung on open space trails.
7. Court Dixon, 1955 13th St. - re: representing Kingsley and Co. on the Hill- spoke in support of the U.H.A.G. report- urged Council support and follow- through.
8. Cynthia Schilling, 502 College Ave - re: University Hill- Enforcement of laws should not fall on the shoulders of the victims. Requested Council support for improved enforcement.
9. Rob Smoke, 2445 19th St. Apt. B - re: parking subsidies: agreed with comments from Mr. Ravitz on 11/12, re: Crossroads, again encouraged creative solutions. Given traffic patterns, encouraged affordable housing.
10. Mary Curtis, 937 15th St.- re: U.H.A.G. report- supported report- Asked for Action- not just words. Pointed out need for additional parking for hill businesses.
11. Evan Ravitz, University Hill Resident - re: traffic/parking congestion.
12. Garland Campbell, 4395 Grinnel Ave.- re: University Hill Action Group. Council focus needs to be on property owners rather than homeless, or transient population. Urged support of U.H.A.G. group.

13. Julian Harrison, 263 Pearl St.- 1) encouraged creation of dog parks 2) re: University Hill - urged City not to lose site of what Boulder has always been- a college town. Compromise needed.
14. Robert Sharpe, 5995 Marshall Dr.- re: Citizen interaction with Council. Spoke of importance of responding to citizens at the time of inquiry.
15. Robert Byers, 1530 Kalmia Ave.- Boulder County Sunquist addition- spoke of neighborhood concerns regarding potential impacts of this project. Requested referral to Planning Board and Transportation Advisory Board.
16. Lynn Segal, 538 Dewey - re: 1) Energy Conservation, noted its importance. 2) Praised Boulder High demonstration of a third world Country Sweat Shop. 3) Discouraged shopping at Borders Books.

COUNCIL/STAFF RESPONSE- 6:52 p.m.

City Manager Ron Secrist responded:

- 1) Regarding the University Hill Action Groups - indicated that a report on implementation and timelines would be on the 12/19 meeting.
- 2) Suggested having C.A.C. look at Council Procedures with regards to Citizen Participation.
- 3) Confirmed that the Sunquist Project is currently going through the Development Review Process.

3. **CONSENT AGENDA:** 7:05 p.m.

A. APPROVAL OF THE CITY COUNCIL MEETING MINUTES OF NOVEMBER 14, 2000 AND NOVEMBER 21, 2000.

Page 2 of the November 14th minutes were amended by Councilmember Morzel with regard to the height of the proposed telecommunications towers at Eldorado Mountain being up to 450 feet and the Lookout Mountain tower up to 800 feet.

B. SECOND READING AND CONSIDERATION OF ORDINANCE NO. 7101 APPROVING AND AUTHORIZING THE ISSUANCE OF BOULDER MUNICIPAL PROPERTY AUTHORITY (BMPA) LEASE PURCHASE REVENUE NOTES, SERIES 2001A, IN THE AGGREGATE PRINCIPLE AMOUNT OF \$545,000.00, AND APPROVING AND AUTHORIZING A LEASE PURCHASE AGREEMENT FOR THE PURCHASE OF 53.37 ACRES IN FEE TOGETHER WITH ALL MINERAL RIGHTS AND 13 SHARES OF LEFT HAND DITCH FROM THE LAVERNE JOHNSON TRUSTS FOR OPEN SPACE PURPOSES.

- C. CONSIDERATION OF A MOTION TO ADJOURN FROM THE BOULDER CITY COUNCIL AND CONVENE AS THE BOULDER MUNICIPAL PROPERTY AUTHORITY BOARD OF DIRECTORS; AND**

CONSIDERATION OF A RESOLUTION NO.92 APPROVING AND AUTHORIZING THE ISSUANCE OF BOULDER MUNICIPAL PROPERTY AUTHORITY LEASE PURCHASE REVENUE NOTES, SERIES 2001A IN THE AGGREGATE PRINCIPLE AMOUNT OF \$545,000.00, AND APPROVING AND AUTHORIZING A LEASE PURCHASE AGREEMENT FOR THE PURCHASE OF 53.37 ACRES IN FEE TOGETHER WITH ALL MINERAL RIGHTS AND 13 SHARES OF LEFT HAND DITCH LOCATED AT NELSON ROAD AND N. 39TH AVENUE FROM THE LAVERNE JOHNSON TRUSTS FOR OPEN SPACE PURPOSES.

- D. CONSIDERATION OF A MOTION APPROVING A RESOLUTION NO.93 AMENDING THE 2000 BUDGET FOR THE BOULDER MUNICIPAL PROPERTY AUTHORITY; AND**

CONSIDERATION OF A MOTION TO ADJOURN FROM THE BOULDER MUNICIPAL PROPERTY AUTHORITY BOARD OF DIRECTORS AND CONVENE AS THE UNIVERSITY HILL GENERAL IMPROVEMENT DISTRICT BOARD OF DIRECTORS (UHGD).

- E. CONSIDERATION OF A MOTION APPROVING A RESOLUTION NO.131 AMENDING THE 2000 UHGD BUDGET; AND**

CONSIDERATION OF A MOTION TO ADJOURN FROM THE UNIVERSITY HILL GENERAL IMPROVEMENT DISTRICT BOARD OF DIRECTORS AND RECONVENE AS THE BOULDER CITY COUNCIL.

- F. SECOND READING AND CONSIDERATION OF ORDINANCE NO. 7104 APPROVING SUPPLEMENTAL APPROPRIATIONS TO THE 2000 BUDGET.**

- G. CONSIDERATION OF THE PURCHASE OF APPROXIMATELY 31.88 ACRES IN FEE, ALONG WITH 50 SHARES OF LEFT HAND DITCH COMPANY WATER FROM THE FRANCIS L. BRUNING FAMILY TRUST FOR \$259,00.00 FOR OPEN SPACE PURPOSES.**

- H. CONSIDERATION OF AN APPROVAL CONCERNING THE ACCEPTANCE OF A DONATION OF \$15,000 TO THE CITY FOR PURPOSES OF PLANTING ENGLISH OAKS IN PARKS OR CITY RIGHTS-OF-WAYS.**

- I. **CONSIDERATION OF A RESOLUTION #868 APPROVING THE 2001 LAW ENFORCEMENT ASSISTANCE FUND (LEAF) GRANT.**
- J. **SECOND READING AND CONSIDERATION OF ORDINANCE NO. 7105, AMENDING SECTION 7-6-2, "PARKING PENALTIES," TO INCREASE THE FINE FOR A VIOLATION OF SECTION 7-6-22, "PARKING IN HANDICAPPED SPACE PROHIBITED," B.R.C. 1981**

Councilmember Lopez moved, seconded by Morzel, to approve Consent Agenda items 3-A through 3-J with Item 3A as amended.

Staff was directed to bring back ordinance waiving handicap parking meter fees on Saturday.

4. **MATTERS FROM THE CITY MANAGER:** None
5. **MATTERS FROM THE CITY ATTORNEY:** None
6. **MATTERS FROM MAYOR AND MEMBERS OF COUNCIL:**

- A. **CONSIDERATION OF A MOTION APPROVING THE PROPOSED 2001 BUDGET, OPERATING PLAN AND BOARD NOMINATIONS FOR THE DOWNTOWN BOULDER BUSINESS IMPROVEMENT DISTRICT. - 7:10 p.m.**

Presented by John MaHaffey- Jane Jenkins and Paul Ecklund.

Councilmember Morzel moved, seconded by Toor, to approve the 2001 budget and operating plan and appointing - 1)Paul Ecklund 2) Virginia Patterson and 3) Sam Sussman for 3 year terms to the Business Improvement District.

- B. **UNIVERSITY HILL ACTION GROUP REQUEST FOR EXTENSION UNTIL JANUARY 31, 2001. - COUNCILMEMBERS MOCK, POINSATTE, AND RIGGLE. 7:25 P.M.**

Councilmember Poinsatte moved, seconded by Riggle, to extend the term of the University Hill Action Group through January of 2001.

*******OTHER MATTERS*******

Councilmember Lopez thanked the community for its response to the hurricane relief request from Sister City Mante, Mexico. The Mural - a gift from Mante - will be painted by the local Mante Artist in April and will be located on the exterior wall of the Dairy Center for the Arts.

City Manager Secrist was directed to re-affirm the City position to CCHE (Colorado Council for

Higher Education) and the University of Colorado, regarding housing needs for the projected enrollment incres at C.U. Boulder.

Mayor Toor provided a brief update regarding US 36 M.I.S.

Mayor Toor encouraged retailers to conserve energy during cold weather by keeping their doors closed and looking for other alternatives to encourage customers to enter their stores.

The Mixed Use Workshop was announced by Councilmember Morzel.

7. **PUBLIC COMMENT:** none - 7:55 p.m.

8. **FINAL DECISIONS:** 7:56 p.m.

Vote was taken on the motion to approve Consent Agenda Items 3-A through 3-J with Item 3A as amended. The motion carried: 6-0, Havlick, Morzel and Poinsatte absent.

Vote was taken on the motion to approve the proposed 2001 budget, operating plan and board nominations for the Downtown Boulder Business Improvement District. The motion carried: 6-0, Havlick, Morzel and Poinsatte absent.

Vote was taken on the motion to extend the University Hill Action Group through January of 2001. The motion carried: 6-0, Havlick, Morzel and Poinsatte absent.

ORDER OF BUSINESS

PUBLIC HEARINGS:

9. SECOND READING AND CONSIDERATION OF ORDINANCE NO. 7100 FORMING THE FOREST GLEN ECO PASS GENERAL IMPROVEMENT DISTRICT. 8:00 P.M.

Public Hearing:

1. Michael Mitchell, 3925 Orange Ct.-raised concerns re: costs, integrity of the numbers and process. Opposed to formation of District.
2. Lois Bjerke, 3769 Orange Ln. - requested that the advisory committee formed should contain both proponents and opponents to insure accountability to residents of Forest Glen.
3. Rodney Mitchell, P.O. Box 3361 - Asked why by emergency? Make sure the numbers are right and have annual measurements reported to Council.
4. Don McCormick, 3835 Orange Ct.- Organizer for Forest Glen District- spoke in support of the proposed District.
5. Christopher Alsop, 1025 Poplar Ave.- spoke in support- as resident of Affordable Housing project- encouraged passage.

6. Ann Bermingham, 1025 Poplar Ave.- Neighborhood resident spoke of importance of the Eco Pass program to her family and many other neighbors.
7. Judy Gilligan, 1020 Oakdale Pl.- spoke in support of the District.
8. Jay McHarris, 1120 Poplar Ave.- in support of the District to provide Eco Passes for this District.
9. Garland Campbell, 4395 Grinnell Ave. - Democracy rules- the voters approved the District- it should move forward.
10. Lynn Segal, 538 Dewey - spoke in support of the program.

Councilmember Morzel moved, seconded by Toor, to adopt Emergency Ordinance No.7100 forming the Forest Glen Eco Pass General Improvement District .as amended to include a more accurate map of the District and changing the name to the Forest Glen Transit Pass GID. The motion carried: 8-0, Havlick absent.

10. CONSIDERATION OF A MOTION TO ADJOURN FROM THE BOULDER CITY COUNCIL AND CONVENE AS THE FOREST GLEN TRANSIT PASS GENERAL IMPROVEMENT DISTRICT BOARD OF DIRECTORS; AND 8:45 P.M.

Seeing no objection the Boulder City Council adjourned and convened as the Forest Glen Eco Pass General Improvement District Board of Directors appointing Will Toor,by acclamation to serve as the Chair of the Board. The motion carried: 8-0, Havlick absent.

CONSIDERATION OF THREE RESOLUTIONS PERTAINING TO THE 2001 BUDGET OF THE FOREST GLEN TRANSIT PASS GENERAL IMPROVEMENT DISTRICT FUND;

A. RESOLUTION No.001 CONCERNING THE FOREST GLEN TRANSIT PASS GENERAL IMPROVEMENT DISTRICT, ADOPTING A BUDGET FOR THE FISCAL YEAR BEGINNING JANUARY 1, 2001.

Board member Corson moved, seconded by Morzel, to adopt Resolution No. 001 adopting a budget for the fiscal year beginning January 1, 2001. The motion carried: 8-0, Havlick absent.

B. RESOLUTION NO. 002 ESTABLISHING THE 2000 FOREST GLEN TRANSIT PASS GENERAL IMPROVEMENT DISTRICT PROPERTY TAX MILL LEVY FOR PAYMENT OF EXPENDITURES, IN PART, OF THE DISTRICT DURING THE FISCAL YEAR 2001, AND SETTING FORTH DETAILS IN RELATION THERETO.

Board member Corson moved, seconded by Morzel, to adopt Resolution No. 002 establishing the 2000 Forest Glen Transit Pass General Improvement District Property Tax Mill Levy for

payment of expenditures, in part, of the District during the fiscal year 2001. The motion carried: 8-0, Havlick absent.

C. RESOLUTION NO. 003 APPROPRIATING MONEY TO DEFRAY THE EXPENSES AND LIABILITIES OF THE FOREST GLEN TRANSIT PASS GENERAL IMPROVEMENT DISTRICT FOR THE 2001 FISCAL YEAR AND SETTING FORTH DETAILS IN RELATION THERETO; AND

Board member Corson moved, seconded by Morzel , to adopt Resolution no. 003 appropriating money to defray the expenses and liabilities of the Forest Glen Transit Pass General Improvement District for the 2001 fiscal year The motion carried: 8-0, Havlick absent.

CONSIDERATION OF A MOTION TO ADJOURN FROM THE FOREST GLEN ECO PASS GENERAL IMPROVEMENT DISTRICT BOARD OF DIRECTORS AND RECONVENE AS THE BOULDER CITY COUNCIL.

Seeing no objection the Forest Glen Transit Pass General Improvement District Board of Directors adjourned and the Boulder City Council reconvened.

11. ITEMS PERTAINING TO ANNEXATION AND INITIAL ZONING OF 1.66 ACRES (72,309 SQUARE FEET) LOCATED AT 4810 NORTH BROADWAY #AZ-2000- 6. 8:55 P.M.

APPLICANT: 1675 RANGE, LLC

A. CONSIDERATION OF A RESOLUTION NO.872 FINDING THE ANNEXATION PETITION IN COMPLIANCE WITH STATE STATUTES AND ESTABLISHING JANUARY 16, 2001 AS THE DATE FOR A PUBLIC HEARING.

Councilmember Lopez moved, seconded by Eldridge, to adopt Resolution No. 872 finding the annexation petition in compliance with state statutes and establishing January 16, 2001 as the date for a public hearing. The motion carried: 7-0, Havlick and Riggle absent.

B. INTRODUCTION, FIRST READING, AND CONSIDERATION OF A MOTION TO ORDER PUBLISHED BY TITLE ONLY, ORDINANCE #7106 TO ANNEX AND ZONE THE SUBJECT PROPERTY TO INDUSTRIAL SERVICE-DEVELOPING (IS-D).

Councilmember Lopez moved, seconded by Eldridge, to introduce and order published by title only Ordinance No.7106 to annex and zone the subject property to Industrial Service-Developing (IS-D) The motion carried: 7-0, Havlick and Riggle absent.

FIRST READINGS: 9:00 p.m.

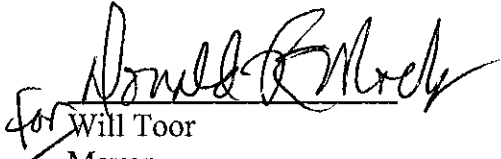
12. INTRODUCTION, FIRST READING AND CONSIDERATION OF A MOTION TO ORDER PUBLISHED BY TITLE ONLY ORDINANCE # 7107 VACATING A PORTION OF STEEPLY SLOPING 17TH STREET RIGHT-OF-WAY LOCATED ONE HALF BLOCK NORTH OF MAPLETON AVENUE WHERE THE 17TH STREET ENDS AT THE RENT PROPERTY NEAR 1700 BLUFF STREET.

Councilmember Corson moved, seconded by Morzel, to introduce and order published by title only Ordinance No. 7107 vacating a portion of steeply sloping 17th Street right-of-way located one half block north of Mapleton Avenue where the 17th Street ends at the rent property near 1700 Bluff Street. The motion carried: 8-0, Havlick absent.

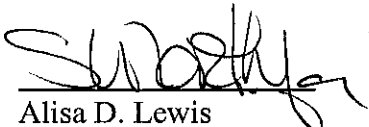
ADJOURNMENT

There being no further business to come before Council at this time, BY MOTION REGULARLY ADOPTED, THE MEETING WAS ADJOURNED AT 9:00 p.m.

APPROVED BY COUNCIL:


for Will Toor
Mayor

ATTEST:


Alisa D. Lewis
City Clerk